



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing eight judgments on Tuesday 11 July 2017 and 14 judgments and / or decisions on Thursday 13 July 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 11 July 2017

[Belcacemi and Oussar v. Belgium \(application no. 37798/13\)](#)

The applicants, Samia Belcacemi (a Belgian national) and Yamina Oussar (a Moroccan national), were born in 1981 and 1973 respectively and live in Schaerbeek and Liège (Belgium). The case concerns the Belgian law of 1 June 2011 banning the wearing in public places of clothing which partially or totally covers the face.

Ms Belcacemi and Ms Oussar present themselves as Muslims who have decided on their own initiative to wear the niqab – a veil covering the face except for the eyes – on account of their religious convictions.

Following the enactment on 1 June 2011 of the law in question, Ms Belcacemi initially decided to continue wearing the veil in the street. However, under pressure, she subsequently decided to remove her veil temporarily, being afraid that she might be stopped in the street and then heavily fined or even sent to prison. Ms Oussar, for her part, states that she decided to stay at home, with the resulting restriction on her private and social life.

On 26 July 2011 Ms Belcacemi and Ms Oussar brought an action for the suspension and annulment of the law before the Constitutional Court. Their cases were dismissed by that court in October 2011 (application for suspension) and in December 2012 (application for annulment).

Relying on Articles 8 (right to respect for private and family life), 9 (freedom of thought, conscience and religion), and 10 (freedom of expression), taken separately and together with Article 14 (prohibition of discrimination) of the European Convention on Human Rights, Ms Belcacemi and Ms Oussar complain about the ban on wearing the full veil.

Ms Belcacemi and Ms Oussar also rely on Articles 3 (prohibition of inhuman or degrading treatment), 5 § 1 (right to liberty and security), 11 (freedom of assembly and association) and Article 2 of Protocol No. 4 (freedom of movement) to the Convention, taken separately or together with Article 14 (prohibition of discrimination) of the European Convention.

[Dakir v. Belgium \(no. 4619/12\)](#)

The applicant, Fouzia Dakir, is a Belgian national who was born in 1977 and lives in Dison (Belgium). The case concerns a by-law adopted in June 2008 by three Belgian municipalities concerning a ban on the wearing in public places of clothing that conceals the face, and the subsequent proceedings before the *Conseil d'État*.

In June 2008 the municipalities of Pepinster, Dison and Verviers adopted a municipal by-law providing in Article 113*bis* thereof for a ban on the wearing of clothing concealing the face, at all times and in all public places.

In August 2008 Ms Dakir, presenting herself as a Muslim who had decided on her own initiative to wear the niqab – a veil covering the face except for the eyes – applied to the *Conseil d'État* for the annulment of the ban. She claimed among other things that the provision expressly concerned the Islamic veil that she wore and that the resulting ban constituted an interference with the rights secured by Articles 8, 9, 10 and 14 of the European Convention on Human Rights. She also contended that the interference had no legitimate aim as secularism was not a constitutional principle and the wearing of the veil could not be subject to a blanket ban. In June 2011 the *Conseil d'État* dismissed the case for failure to comply with an admissibility condition that it raised of its own motion.

Relying on Articles 8 (right to respect for private and family life), 9 (freedom of thought, conscience and religion), and 10 (freedom of expression), taken separately and together with Article 14 (prohibition of discrimination) of the Convention, Ms Dakir complains about the ban on the full veil. She also relies on Article 6 § 1 (right of access to a court) and Article 13 (right to an effective remedy).

[Oravec v. Croatia \(no. 51249/11\)](#)

The applicant, Stevan Oravec, is a Croatian national who was born in 1978 and lives in Osijek (Croatia). The case concerns a decision ordering Mr Oravec's detention in criminal proceedings brought against him on drug trafficking charges.

On 27 April 2011 Mr Oravec was arrested and detained on suspicion of drug trafficking. He was released about a month later by the investigating judge because another co-accused had retracted his statement incriminating Mr Oravec. While Mr Oravec was at liberty, the prosecutor successfully appealed against the decision to release him. The prosecutor argued that Mr Oravec had been convicted of a similar offence before; that another set of criminal proceedings on similar charges was concurrently pending against him; and that he was unemployed and had no income. On the basis of those arguments, on 10 June 2011 the Osijek County Court, in closed session, reversed the decision to release Mr Oravec, ordered that he be re-arrested and placed him in pre-trial detention again. His challenges to the Supreme Court and Constitutional Court were subsequently all declared inadmissible. The prosecution ultimately dropped the charges against him in October 2012. In the meantime he had been released. In subsequent civil proceedings for compensation Mr Oravec was awarded non-pecuniary damage, the courts finding that his detention had been unfounded because the charges against him had been dropped.

Relying on Article 5 §§ 1 and 4 (right to liberty and security / right to have lawfulness of detention decided speedily by a court), Mr Oravec complains that his detention was unlawful and that there were procedural defects in the proceedings concerning his detention. In particular, he alleges that no time-limit had been set in the decision of June 2011 ordering his detention, that he had at no point been informed of the proceedings leading to his re-arrest and detention and that the Constitutional Court refused to examine his complaint on the merits.

[T.G. v. Croatia \(no. 39701/14\)](#)

The applicant, T.G., is a Croatian national who was born in 1974. The case concerns his complaint about being refused a firearms license on the basis of undisclosed police reports.

T.G. was a member of a hunting association and spent his vacations hunting in Croatia. After having held a firearms license for hunting purposes in Croatia for ten years, he applied to renew it in 2011. The police, having conducted a background check which included reports that T.G. regularly abused alcohol, issued a report of their findings and refused his application. He challenged the decision before the Ministry of the Interior, which ordered the police to produce a new assessment of the background check. The second report provided further detail of the alleged alcohol abuse and confirmed these details with T.G.'s neighbours in Croatia, though their identities were classified. The

Ministry of the Interior dismissed the complaint and T.G. challenged their decision before the administrative courts, which then upheld the refusal based on information contained in the confidential file. T.G. complained to the Constitutional Court that he had been denied access to the evidence containing allegations against him and that it had left him without opportunity to challenge them. The Constitutional Court dismissed the complaint as unfounded, holding that the police reports on his background check contained sufficient details regarding the refusal.

Relying on Article 6 § 1 (right to a fair hearing), T.G. complains that the administrative proceedings were unfair because the refusal to renew his firearms licence was based on police reports that had not been made available to him or his lawyer. He also relies on Article 8 (right to respect for private and family life) to complain that he has been prevented from hunting on grounds that stigmatise him, namely that he has a drinking problem.

[Ž.B. v. Croatia \(no. 47666/13\)](#)

The applicant, Ms Ž.B., is a Croatian national who was born in 1981. The case concerns her complaint that the authorities failed to properly prosecute her husband for his acts of domestic violence against her.

Ms Ž.B. lodged a criminal complaint about her husband's alleged acts of physical and psychological violence in May 2007. He was prosecuted and convicted on two occasions, but both judgments were overturned on appeal and remitted to trial, on the ground that some relevant facts had not been established. When the proceedings were resumed again in January 2013, they were discontinued on the grounds that the 2011 Criminal Code had abolished the offence of domestic violence.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life), Ms Ž.B. complains that the domestic authorities failed to effectively prosecute a person who had committed domestic violence against her.

[Mardosai v. Lithuania \(no. 42434/15\)](#)

The applicants, Vygandas Mardosas and Vaida Mardosienė, husband and wife, are Lithuanian nationals who were born in 1971 and 1981 respectively and live in Jurbarkas (Lithuania). The case concerns alleged medical negligence which led to the death of their newborn daughter.

Following the baby's death on 22 May 2009, inquiries by the hospital and the healthcare authorities were carried out finding shortcomings in the doctors' treatment of mother and baby during labour and in particular in resuscitating the baby after its birth by Caesarean section. In June 2009 the couple requested the prosecuting authorities to open a pre-trial investigation into alleged medical negligence leading to their daughter's death. The pre-trial investigation, during which a number of specialist opinions and forensic examinations were ordered and carried out, lasted just over four years and nine months before being discontinued by the Jurbarkas prosecutor on the grounds that no causal link between the doctors' actions and the baby's death had been established. The couple appealed and the case was then transferred in April 2014 to Jurbarkas District Court for examination on the merits. It was however terminated as time-barred one month later. The applicants appealed without success.

The couple were successful in a parallel civil suit against the hospital which was concluded in November 2014. They were awarded 24,115 euros in compensation.

Relying on Article 2 (right to life), Ms Mardosienė and Mr Mardosas complain that the criminal proceedings concerning their daughter's death were lengthy and ineffective.

[Šidlauskas v. Lithuania \(no. 51755/10\)](#)

The applicant, Antanas Šidlauskas, is a Lithuanian national who was born in 1945 and lives in Jonava (Lithuania). The case concerns his complaint that he was unlawfully deprived of his home.

In November 2004 Mr Šidlauskas' apartment was sold at auction for 3,390 Lithuanian litai (LTL) (approximately 982 euros), by a bailiff who was seeking recovery of Mr Šidlauskas' unpaid utility bills (amounting to LTL 2,861 Lithuanian litai). In November 2007 Mr Šidlauskas brought an action against the bailiff and its insurer. He claimed that the sale had been unlawful, given that enforcement of unpaid debts against homes was not permitted for debts of under LTL 3,000. He claimed LTL 51,000 in damages, corresponding to the market value of the apartment at the time he submitted his claim. The Supreme Court ultimately ruled in his favour, but only awarded damages of LTL 12,100, corresponding to the property's market value at the time of sale rather than the time Mr Šidlauskas had submitted his claim.

Relying on Article 8 (right to respect for private and family life) and Article 1 of Protocol No. 1 (protection of property), Mr Šidlauskas complains that he was unlawfully deprived of his apartment, and that the damages awarded to him were insufficient for him to acquire a comparable property.

[M.S. v. Ukraine \(no. 2091/13\)](#)

The applicant, Mr M.S., is a Ukrainian national who was born in 1986 and lives in Sumy (Ukraine). The case concerns the investigation into alleged sexual abuse of his daughter and the determination of her place of residence.

Mr M.S. had a daughter with V. in March 2008 and the two married a short time thereafter. Their relationship deteriorated and in September 2011 V. moved with their daughter to live in a nearby village. In December 2011, Mr M.S. found his daughter in a child care centre and took her for a medical examination which revealed several injuries. The child allegedly reported the injuries had been caused by her mother, but the police refused to open a criminal investigation into either alleged abduction or abuse.

In March and April 2012, Mr M.S.'s mother requested that the authorities bring criminal proceedings against V. because she suspected the child may have been a victim of sexual abuse. During an interview, the child described having seen V. and V.'s uncle engage in sexual activity on several occasions. She also described sex acts she had been made to do. The police refused to open criminal proceedings on three occasions in 2012, but the refusals were quashed by prosecutors. A full-scale investigation into sexual abuse was launched in May 2013. After numerous delays the investigation was still ongoing as of January 2016.

In the meantime, in June 2012 the District Court had dissolved the marriage of Mr M.S. and V. and ruled that their daughter should live with her mother. This decision was upheld on appeal before both the Regional Court of Appeal and the Higher Specialised Court for Civil and Criminal Matters.

Relying in essence on Article 8 (right to respect for private and family life), Mr M.S. complains that the investigation into the sexual abuse of his daughter was ineffective. He further complains under this article that the domestic courts failed to properly examine all of the relevant circumstances when determining his daughter's place of residence during the relevant civil proceedings.

Thursday 13 July 2017

[Nikolay Genov v. Bulgaria \(no. 7202/09\)](#)

The applicant, Nikolay Dimitrov Genov, is a Bulgarian national who was born in 1966 and lives in Pazardzhik (Bulgaria). The case concerns his complaint that the courts failed to consider his case fairly during criminal proceedings against him.

In 2008 Mr Genov was convicted for having acquired counterfeit US dollars. The court ruled that he had acquired the notes at some time between March 2005 (when such possession was first criminalised) and January 2007 (when the notes were found in a search of his house). However, at trial, evidence had been given suggesting that Mr Genov had acquired US dollars in 2002 (before the

possession of counterfeit notes was criminalised), and also in subsequent years. Mr Genov appealed his conviction, claiming that it had never been established that he had taken possession of the counterfeit notes at a time when this had been a criminal offence. However, both of his appeals were dismissed.

Relying in particular on Article 6 § 1 (right to a fair trial), Mr Genov complains that the domestic courts failed to respond to his argument, that it had not been shown that he had carried out the offence at a time when it had been unlawful.

[Velkova v. Bulgaria \(no. 1849/08\)](#)

The applicant, Tatyana Velkova, is a Bulgarian national who was born in 1966 and lives in Sofia. The case concerns her complaint that the municipal authorities failed to duly implement a court order, ordering it to allow her to purchase some of the authority's property.

In February 2004, the Kardzhali Municipal Council was ordered by the Regional Court to open a privatisation procedure, under which it would offer Ms Velkova the option to purchase the first floor of the city's shopping centre. The ruling was upheld by the Supreme Administrative Court in a final decision in February 2005. However, though Ms Velkova was able to purchase part of the premises in 2008, the municipal authorities refused to grant her the option to buy the whole of the first floor until December 2013. She sought a remedy for this failure in particular through administrative proceedings for damages – but was unsuccessful.

Relying on Article 6 § 1 (right to a fair hearing) and Article 1 of Protocol No. 1 (protection of property), Ms Velkova complains that the municipal council failed to comply with a final judgment in her favour for nine and a half years. Relying on Article 13 (right to an effective remedy) in conjunction with Article 6 § 1 and Article 1 of Protocol No. 1, she complains of the absence of an effective domestic remedy in respect of her complaint.

[Jugheli and Others v. Georgia \(no. 38342/05\)](#)

The application was made by Ivane Jugheli (now deceased), Otar Gureshidze, and Liana Alavidze, Georgian nationals who were born in 1946, 1947, and 1957 respectively. The case concerns their complaint that a thermal power plant located in close proximity to their homes endangered their health and well-being.

The "Tboelectrocentrali" power plant was located approximately four metres from the block of flats where the applicants lived in Tbilisi. The power plant first started operations in 1939 and partially ceased in February 2001. According to the applicants, while operational the plant's potentially dangerous activities were not subject to the relevant regulations, as a result of which it produced air pollution which negatively affected their health and well-being. Their claims for compensation in the Georgian courts were all rejected, ultimately by the Supreme Court in a final judgment of 21 April 2005.

Relying on Article 8 (right to respect for private and family life and the home), they complain about the State's failure to protect them from the power plant's pollution.

[Shuli v. Greece \(no. 71891/10\)](#)

The applicant, Astrit Shuli, is an Albanian national who was born in 1983 and lives in Portoheli (Greece). He complains that he was unfairly denied the opportunity to have his appeal considered by a court. In September 2007 Mr Shuli was convicted of various crimes by the Nafplio three-judge Court of Appeal. Following the delivery of the judgment, Mr Shuli expressed his wish to appeal. He was escorted in handcuffs to the registry of the court, where the registrar completed a pre-printed appeal form with his personal details, and Mr Shuli was briefly released from handcuffs in order to sign it. When the appeal came before the five-member Appeal Court, it was held inadmissible on the grounds that it had not included any reasons. Mr Shuli complains that this ruling violated his rights

under Article 6 § 1 (access to court), as he had been prevented from lodging an appeal due to the way the pre-filled form provided to him by the registry was formulated (rather than due to any fault of his own), and because the inadmissibility ruling had been disproportionate.

Xenos v. Greece (no. 45225/09)

The applicant, Evaggelos Xenos, is a Greek national who was born in 1944 and lives in Pefki (Greece). The case concerns proceedings brought by Mr Xenos against his employer and the partial dismissal of his appeal on points of law for being out of time.

On 30 October 2000, Mr Xenos, a hotel employee, was dismissed from his job. In January 2001 he sued his employer in the civil courts seeking the annulment of his dismissal, his reinstatement and the payment of his wages from 30 October 2000 to 31 December 2001, together with the payment of about 14,840 euros (EUR) by way of bonuses and allowances that he claimed not to have received between 1994 and 2000.

On 10 April 2002 the court dismissed Mr Xenos' action as ill-founded. He appealed. On 10 July 2003 the Court of Appeal gave an initial judgment (no. 5.913/2003), rejecting Mr Xenos' claim concerning the annulment of his dismissal and the payment of salary arrears. On 4 July 2006 the Court of Appeal gave a second judgment (no. 5233/2006), dismissing his claim for unpaid bonuses and allowances. He lodged an appeal on points of law against both judgment on 30 October 2006.

On 20 January 2009 the Court of Cassation rejected as out of time the appeal on points of law against judgment no. 5.913/2003 concerning Mr Xenos' dismissal and the payment of salary arrears, finding that the three-year time-limit for such appeals had expired. It also rejected the appeal against judgment no. 5233/2006, on the alleged bonuses and allowances, declaring it unfounded.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time / right of access to a court) and on Article 13 (right to an effective remedy), Mr Xenos complains about the length of the proceedings, about the lack of an effective remedy by which to have that complaint heard, and a breach of his right of access to a court on account of the partial rejection of his appeal on points of law.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Abbas and Others v. Azerbaijan (nos. 69397/11, 70966/11, 73706/11 and 935/12)

Alisoy and Others v. Azerbaijan (nos. 78162/13, 79517/13 and 3245/14)

Herakleous v. Cyprus (no. 57596/12)

Jaunzems and Others v. Latvia (no. 29769/06)

Ozols v. Latvia (no. 61257/08)

Linkevičienė and Others v. Lithuania (nos. 33556/07, 34734/07 and 34740/07)

Vica Ltd v. Malta (no. 28182/15)

Metis Yayıncılık Limited Şirketi and Sökmen v. Turkey (no. 4751/07)

Teker v. Turkey (no. 2272/11)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.